

Transaction Date means the date on which Convera executes an Instruction on behalf of the Client regarding the receipt or initiation of a payment in a particular amount.

Trust Account has the meaning given to it in clause 3.7(a).

U.S. Person has the meaning given to it in the Interpretive Guidance and Policy Statement Regarding Compliance with Certain Swap Regulations, 78 Fed. Reg. 45292 (July 26, 2013), as it may be amended by the U.S. Commodities Trading Futures Commission from time to time in relation to derivatives regulation promulgated under the Dodd-Frank Wall Street Reform and Consumer Protection Act.

2. Conducting Business with Convera

2.1 Provision of the Services.

- a) Convera Singapore: Where any of the Services involve the conversion of amounts from one currency into another currency which are not Forward Contracts, Convera Singapore will provide such part or parts of the Services as involves currency conversion and remittance as principal.
- b) Convera FS Singapore: Where any of the Services involve the provision of Forward Contracts, Convera FS Singapore will provide such part of the Services as involves currency conversion and remittance as principal.

2.2 Reliance on Instruction. The Client hereby authorises Convera to accept, act and rely upon any Instruction that Convera reasonably believes to have been made by the Client or any Authorised Person to provide the Services set forth in the Instruction from the Client.

2.3 Delivery of Instructions. The Client may give Instructions relating to the Services being provided to the Client by Convera FS Singapore from time to time to personnel of Convera Singapore, provided that they are also distinctly employed by Convera FS Singapore and are registered as representatives of Convera FS Singapore pursuant to the Securities and Futures Act, Cap 289.

2.4 Accuracy of Instruction. Before transmitting an Instruction, the Client is responsible for ensuring all information contained in the Instruction is complete, accurate, and if in writing, legible. If the Client subsequently learns of any error in an Instruction, the Client must immediately notify Convera in writing.

2.5 Inaccuracy of Instruction. If the Client fails to provide a timely, complete, accurate and legible Instruction, Convera will place the Contract Funds provided by or received for the benefit of the Client in accordance with its obligations under regulations applicable to it and otherwise under general law as custodian pending receipt from the Client of the information necessary to complete the transaction, provided that the Client is not otherwise in default under this Agreement. Convera will not be liable for any loss or damage suffered by the Client as a result of any such delay.

2.6 Transaction Processing.

- a) Convera agrees to process transactions for the Client as soon as commercially practicable (during business hours) after receiving an Instruction.
- b) The Parties agree that a transaction will be deemed to be binding and final once a Transaction Confirmation number has been generated by Convera (or one of its Convera Group Companies assisting with the generation of such confirmation).
- c) Once the Instruction has been processed and the Transaction Confirmation has been generated, Convera will provide the Transaction Confirmation to the Client. Convera will send drafts to the Client (or Payee) once the Instruction is processed or will initiate the electronic funds transfer(s) upon receipt of Settlement from the Client, unless otherwise agreed in writing between the Client and Convera.
- d) The Client acknowledges that a Convera Group Company will acquire (or make available) foreign currency in relation to each Instruction (including any Foreign Exchange Contract) involving a foreign currency payment so that Convera will be able to fulfill its obligations to deliver the Contract Funds in accordance with a relevant Instruction.

2.7 Fees. The Client understands that Convera will charge certain fees for the Services, which fees will be set forth in a fee schedule that will be provided to the Client upon request. Convera may change the fees charged for the Services at its sole discretion at any time upon notice to the Client. Any change will be effective thirty (30) days after